Employee Confidentiality, IP Assignment & Non-Solicitation Agreement

Protects client data, company IP, and client relationships

Document ID: BVT-INT-064	**Version:** 1.0	**Issued:** July 02, 2026	**Effective Date:** ____________

Consideration

In consideration of employment or continued employment with BVTech LLC ("Company"), access to Confidential Information, and compensation paid, the undersigned employee ("Employee") agrees as follows.

Confidentiality

Employee will hold in strict confidence all Confidential Information of Company and its clients — including client credentials, network documentation, security information, pricing, business methods, and the OpsPilot platform — using it only to perform job duties, during and after employment. Trade secrets are protected indefinitely under the Texas Uniform Trade Secrets Act; other Confidential Information for five (5) years post-employment. Notice under the Defend Trade Secrets Act: an individual shall not be held criminally or civilly liable for disclosure of a trade secret made in confidence to a government official or attorney solely to report or investigate a suspected violation of law, or in a sealed court filing.

Intellectual Property Assignment

Employee assigns to Company all right, title, and interest in inventions, code, documentation, and works created within the scope of employment or using Company resources or Confidential Information ("Company IP"), which are works made for hire to the fullest extent of the law. Excluded: inventions Employee developed entirely on personal time without Company resources that do not relate to Company's business or anticipated R&D; — Employee lists any prior inventions to be excluded below (write NONE if none):

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Non-Solicitation (Texas Bus. & Com. Code § 15.50 tailored)

For twelve (12) months after employment ends, Employee will not, directly or indirectly: (a) solicit or service, for competing managed IT or security services, any Company client with whom Employee had material contact or about whom Employee received Confidential Information during the final 24 months of employment; or (b) solicit Company employees or contractors to leave Company. This restriction is ancillary to the confidentiality obligations above, is limited to the clients described (no general market restriction), and the parties agree it is reasonable and necessary to protect Company goodwill and Confidential Information. If a court finds any restriction overbroad, it shall reform it to the maximum enforceable scope.

Return of Property; Remedies

Upon separation, Employee returns all Company and client property, data, and credentials, and permanently deletes Company data from personal devices. Breach of this Agreement causes irreparable harm; Company may seek injunctive relief in addition to damages and fees under Texas law.

General Provisions

Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this Agreement shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

Employee	**BVTech LLC**
Signature: ________________________________	Signature: ________________________________
Name: ____________________________________	Name: ____________________________________
Title: _____________________________________	Title: _____________________________________
Date: _____________________________________	Date: _____________________________________